City Clerk's Office
AUG 18 2026
RECEIVED

County of Santa Clara Registrar of Voters

BALLOT MEASURE REBUTTAL ARGUMENT FORM

This **Ballot Measure Rebuttal Argument Form** must be submitted **for all ballot measure REBUTTAL ARGUMENTS**, with required signatures and author information. The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the Rebuttal argument in Microsoft Word version to candidateservices@rov.sccgov.org. Any errors submitted on the form or Rebuttal argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the rebuttal filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

The author of a rebuttal argument may sign the rebuttal argument or may authorize in writing any other person to author/sign the rebuttal argument. A signed Consent Form is required to authorize a person to author/sign the rebuttal argument who was not an author of the primary argument – Please refer to Section 4, page 5.

Because anyone listed as an author should have the opportunity to review the rebuttal argument, the full text of the rebuttal argument should be attached to all Consent Forms.

Office Use Only

Time/Date Stamp

Date of Election: November 3, 2026 General Election
Jurisdiction: Santa Clara County

Rebuttal Argument due date (E-77): August 18, 2026
Examination Period (E-76 to E-67): _____

SECTION 1: ARGUMENT INFORMATION

Measure Letter -K-

Select the Type of Argument you are Filing

☑ Rebuttal to the Argument in Favor / Opponent	☐ Rebuttal to the Argument Against / Proponent

SECTION 2: AUTHOR INFORMATION

Declaration Related to Proponent/Opponent Rebuttal Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

Please Select the Applicable Line

☑ **I am an Author of the Opponent Rebuttal Argument** (noted above) for **Measure** -K- being submitted. I oppose this measure.

☐ **I am an Author of the Proponent Rebuttal Argument** (noted above) for **Measure** ____ being submitted. I support this measure.

SECTION 3: ARGUMENT TEXT

SUBMITTER SECTION

The Submitter of a Rebuttal Argument is the person who delivers the argument and any supporting materials to the County of Santa Clara Registrar of Voters (ROV). If there is a question or issue with a submission, the ROV will contact the Submitter. The Submitter may also be a Filer or Signer but does not have to be. The ROV asks for Submitter contact information so that the ROV has a contact person for questions about the submission. ***The submitter's name is not included in any of the election materials.***

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

*** Required information.**

I am the **SUBMITTER** of the rebuttal argument.

My contact information for receiving the opposing author's rebuttal argument is:

*** My Name is:** Elizabeth C. Brierly

INDICATE IF ADDRESS IS: ☐ **Residential or Residential Mailing;** ☑ **Business or Business Mailing**

* Address: Silicon Valley Taxpayers Association [redacted]

* Email Address [redacted] Phone Number (cell/direct): [redacted]

PLEASE ATTACH A COPY OF YOUR REBUTTAL ARGUMENT TO THIS FORM
AND FILL OUT THE APPROPRIATE SIGNER FORMS FOR EACH FILER OR SIGNER ON PAGES 3 AND 4

The text of your rebuttal argument will be printed exactly as submitted. Type your rebuttal argument with the desired formatting. Ensure that your rebuttal argument meets the legal word limit of 250 words. You may request that specific text is printed in bold, italic, or bold italic font type.

The County of Santa Clara Office of the Registrar of Voters uses standard typefaces, font sizes, headers, and bullets in all measure related documents.

PLEASE REFER TO PAGE 7 - SECTION 6: APPENDIX A - FOR MEASURES FORMATTING GUIDELINES
(FORMATTED INTO A STANDARD 2-COLUMN PER PAGE TEMPLATE)

For any rebuttal argument submitted on behalf of an organization or bona fide association of citizens, the "Rebuttal Argument Signer Form" must be completed by a principal officer of the organization or bona fide association of citizens and the organization must submit one of the following:

- its articles of incorporation, articles of association, partnership documents, bylaws, or similar documents;
- letterhead containing the name of the organization and its principal officers; **OR**
- if the organization or association is a primarily formed committee established to support or oppose the measure, its statement of organization (FPPC Form 410) filed pursuant to Government Code § 84101.

REBUTTAL ARGUMENT SIGNER FORM FOR FILER / SIGNER ONLY

The undersigned author of the attached rebuttal argument hereby states that such rebuttal argument is true and correct to the best of **their** knowledge and belief. You may use as many copies of the FILER / SIGNER ONLY FORM as needed to cover every FILER / SIGNER.

PLEASE NOTE: If the rebuttal argument signer form is handwritten or a revision is unclear, the County of Santa Clara Office of the Registrar of Voters staff will interpret the handwritten information to the best of their abilities. That interpretation is final.

FILER / SIGNER SECTION

The Filer of a Rebuttal Argument is the person or entity that is responsible for filing an argument for or against a measure. The Signer of the Rebuttal Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of that district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE REBUTTAL ARGUMENT

*** Required information.**

I am the **FILER** of the rebuttal argument: ☐ Yes / ☑ No

I am also a **SIGNER** of the rebuttal argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's rebuttal argument is:

*** My Name is:** Elizabeth C. Brierly

INDICATE IF ADDRESS IS: ☑ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

* Address: [redacted]

* Email Address: [redacted] Phone Number (cell/direct): [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE REBUTTAL ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ * Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:**

☐ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☑ Other: Sex: Female

*** My SIGNING ORDER** on the Argument text to be published is: ☑ **1** / ☐ **2** / ☐ **3** / ☐ **4** / ☐ **5** *(please check one)*

*** My name as a SIGNER** (signature to be printed with the rebuttal argument) is: Elizabeth C. Brierly
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the rebuttal argument) is: Director, Silicon Valley Taxpayers Association
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an [redacted] or purposes of submitting an argument:

SIGNATURES (signatures will be redacted prior to posting online)

REBUTTAL ARGUMENT SIGNER FORM FOR SIGNER ONLY

The undersigned author of the attached rebuttal argument hereby states that such rebuttal argument is true and correct to the best of **their** knowledge and belief. You may use as many copies of the SIGNER ONLY FORM as needed to cover every SIGNER.

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* Required information.

I am a **SIGNER** of the rebuttal argument: ☑ Yes / ☐ No

AS A SIGNER: **I am a:** ☐ Registered Voter in the District ☐ Governing Board Member ☑ * Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

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(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organ[redacted]r purposes of submitting an argument:
	ROV[redacted] **SIGNATURES** (signatures will be redacted prior to posting online)

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*** Required information.**

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I am also a **SIGNER** of the rebuttal argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's rebuttal argument is:

*** My Name is:** Joe Dehn

INDICATE IF ADDRESS IS: ☑ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

*** Address:** [redacted]

*** Email Address:** [redacted] Phone Number (cell/direct): [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE REBUTTAL ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ ***** Principal Officer of an Organization

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*** My name as a SIGNER** (signature to be printed with the rebuttal argument) is: Joe Dehn
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the rebuttal argument) is: Chair, Libertarian Party of Santa Clara County
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡

Unde[redacted]tion meets the required criteria for an individual or for an organ[redacted] purposes of submitting an argument:

ROV[redacted]**IGNATURES** (signatures will be redacted prior to posting online)

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(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an org[redacted] for purposes of submitting an argument:
	[redacted]
	RO[redacted] **SIGNATURES** (signatures will be redacted prior to posting online)

Rebuttal to Argument in Favor of Measure K
(Milpitas business license tax)

City Clerk's Office
AUG 18 2026
RECEIVED

[Argument starts here]

Stop this huge new tax hike!

Beware: Proponents' claims about "fair shares" and "inequity" completely ignore reality:

Businesses don't pay taxes.

Businesses create jobs, goods, services that *we need and value*. To do so, they have countless expenses and considerations.

Taxes are just one cost of doing business, which owners **must pass along.** To *stay* in business, they pass costs along to…

- Customers (higher prices);
- Employees (lower wages); or
- Shareholders (lower returns on investments — our 401(k)s!)

Proponents' claim that Measure K would benefit small businesses is absurd.

MAYBE a **FEW sole proprietorships** would forfeit *slightly* less in business license taxes, but **when their larger suppliers are taxed *more*, the small businesses' costs rise accordingly** — thus, the prices *they* charge *us*! (Remember: *Businesses don't pay taxes.*)

Don't trust politicians who neglect "vital city services" like "aging water and sewer lines," then have the nerve to **stoke envy** and **penalize businesses** to cover for their lack of planning.

It's incredible how well businesses' goods, services, and jobs enhance our lives.

But the **cost of living** here is **already *too high***. Gas, groceries, rent — **nothing seems affordable!**

And if Measure K passes, Milpitas business owners, suffering when burdensome taxation costs push customers away, may relocate to cities who won't penalize them.

Don't tax what you want *more* of.

Want more goods and services, priced lower, and jobs, at higher salaries?

Vote NO.

Let's not penalize our job and product providers!

Vote NO!

Visit SCCLP.org and SVTaxpayers.org. Silicon Valley Taxpayer Association's volunteers support taxpayers throughout Santa Clara County.

[Argument ends here]